

## 25PR01503 (Exhibit C);

County: sonoma

Division: Family Law

Hearing date: 2026-09-03

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25PR01503 (Exhibit C);

4. The Petition for Nullity of Marriage (Exhibit D);

5. The Clerk's Entry of Default in Mark S. Freeman v. Casey Campbell,

Sonoma County Superior Court case no. 25FL01284 (Exhibit E).

6. April 16, 2026 Minute orders (Exhibit F); and

7. April 16, 2026 Reporter's transcript (Exhibit G).

These are all judicially noticeable, and the court may judicially notice the documents, their contents, and their purported legal effect, but may not judicially notice the truth of any factual assertions made therein. With this limitation, the court GRANTS the request.

### Discussion

#### Survival

The death of a party does not abate a pending action if the cause of action survives, and in general all causes of action so survive except as provided by statute. CCP sections 377.20, 377.21. The survival statute, CCP section 377.20, provides the basic law governing survival of actions, i.e, whether an action survives the death of a party. It states, in full,

(a) Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period.

(b) This section applies even though a loss or damage occurs simultaneously with or after the death of a person who would have been liable if the person's death had not preceded or occurred simultaneously with the loss or damage.

CCP section 377.21 adds, in full, "A pending action or proceeding does not abate by the death of a party if the cause of action survives."

In contrast to an action for marital dissolution, which seeks to terminate a marital status, a nullity action seeks to determine that no such status ever existed. In *re* Marriage of Goldberg (1994) 22 Cal.App. 4th 265, 268; In *re* Marriage of Garcia (2017) 13 Cal.App.5th 1334, 1348 (citing and relying on Goldberg); see also *Millar v. Millar* (1917) 175 Cal. 797, 806-807; Fam. Code section 2200, et seq. (setting forth nullity of marriages which are void or voidable). The Goldberg court explained, at 268 and with original emphasis, that it was addressing

the fundamental difference between the objective of an action to dissolve a marriage and one to annul it. The former is concerned with marital status as such; the latter is concerned with whether a contract was validly entered into at all. While it is true that a decree of nullity may, in the popular sense, affect the marital status, the legal reality is that a successful action for nullity of marriage results in a judicial determination that there never was a contract and hence there never was a marriage.

Because of these differences between an action for dissolution and an action for nullity, in contrast to an action for dissolution, the death of a party to a nullity proceeding before the court acts on the petition does not abate the action. The nullity cause of action survives and the deceased party's personal representative should be substituted into the proceeding to permit adjudication of whether a valid marriage or domestic partnership ever existed. In *re* Marriage of Goldberg (1994) 22 Cal.App. 4th 265, 276-277. In Goldberg, decedent filed a nullity proceeding but died about 6-7 months later, with the proceeding pending. Decedent's purported wife petitioned for letters of administration but his nieces and nephews sought appointment of the county public administrator. The latter filed a motion to be substituted into the nullity action for decedent but the trial court denied the motion and the administrator appealed. The Goldberg court reversed, expressly holding that the nullity cause of action survived the death of decedent and concluding, "we hold that decedent's action for nullity of marriage, which he initiated against respondent, survived his death...."

Respondent argues that under Goldberg, the court cannot find this nullity proceeding to survive because in Goldberg the decedent never waived but here there is evidence that he may have wanted to abandon the nullity proceeding. She cites to evidence of messages between Petitioner and his attorney, Joseph Passalacqua ("Passalacqua") in which he indicated that he may not have wanted to continue with the nullity proceeding. In these, the attorney explained the situation to Petitioner and asked for clarification, seeking to make sure what Petitioner ultimately would decide. She also cites to messages to Respondent in which Petitioner referred to himself as Respondent's "husband." Respondent's argument is not persuasive.

First, nothing in Goldberg indicates that a court may decide that a nullity action cannot proceed, and bar substitution of a party, based on such evidence. The Goldberg court simply held that a nullity action survives the death of a party. It did not limit the holding to exclude actions where there may have been evidence of possible abandonment of the action. When Petitioner died, this action was still pending and the court record contains no indication that Petitioner had decided to abandon the action or affirm the marriage, putting it within the holding of Goldberg.

Moreover, in this case, Respondent's evidence of intent to abandon the action or affirm the marriage is equivocal and conflicts with the face of the court record in this proceeding. Respondent's evidence of communications between Petitioner and his attorney shows only that Petitioner at times indicated to his attorney that he intended to drop the proceeding, but it also shows back-and-forth communications regarding the issue without any final resolution. The other evidence which Respondent cites only shows that Petitioner may have called himself "husband" and Respondent "wife" in communications, primarily with Respondent. This is not material. These are merely terms and nothing shows that the mere use of them meant that he necessarily considered the marriage to be valid or was reaffirming the marriage. Moreover, the messages which Respondent cites show that Petitioner in fact was angry with Respondent for her conduct, stating that a wife would not the way she was acting. The nature of the communications is consistent with an intent to seek nullity. Fundamentally, the face of the record does not support Respondent's claims of an intent to reaffirm the marriage or drop the nullity proceeding. Even if Petitioner had considered dismissing the nullity action, ultimately he did not do so. Petitioner proceeded to obtain entry of default against Respondent in this case and the record shows that he never sought to vacate that default, never stipulated to set that aside, and never actually made an effort to dismiss the action. Thus, on the face of the record of this case, Petitioner never abandoned it.

The court also notes that under the statutory provisions governing survival of an action, the analysis is simple: an action either is of the type which survives, or it is not. In determining if an action survives, it is outside the scope of the issues before the court to consider evidence merely showing that a party may not have wanted to continue to proceed. Such evidence, as

here, is equivocal. It may ultimately affect the final outcome of the petition, but it is evidence to consider only then. It does not determine whether the action survives, only whether the action will ultimately result in a judgment of nullity.

The court finds that the nullity action survives.

#### Joinder and Substitution

Fam. Code section 2021 authorizes "a person who claims an interest in the proceeding be joined as a party to the proceeding...."

Michael relies on his own declaration as well as the declarations of both of his siblings and the judicially noticeable documents set forth above. The declarants all show they are the niece and nephews of Petitioner, who died without issue. They also show they are the intestate heirs of Petitioner in the event that Petitioner is found not to be married or survived by a spouse. Michael also shows that Ryan and Tracy in the Probate Action have been named general administrators with full authority for Petitioner's estate. The judicially noticeable documents discussed above further demonstrate these facts. There is no dispute about these facts, and Respondent admits them in her opposition.

Respondent contends instead that Ryan and Tracy are the appropriate parties to be joined and substituted in for Petitioner, but this argument is unpersuasive. Ryan and Tracy have both submitted declarations in support of Michael's motions, stating that they have assigned and transferred to Michael all rights and interests which they may have as successor in interest for this action, including the right to seek to continue the nullity action, the right to appointment as special administrator of Petitioner's estate for the nullity action, the right to control the litigation and resolution of the nullity action, and the right to be joined as successor in interest in the nullity action.

The moving parties show that Petitioner has died, they have been appointed general administrators for his estate in the probate proceeding, and they are Petitioner's intestate heirs and successors. This satisfies the requirements and joinder is granted.

#### Conclusion

The court GRANTS the motion for joinder and the motion to continue nullity proceedings and substitute successor in interest, in full. The prevailing party shall prepare and serve a proposed order consistent with this tentative ruling within five days of the date set for argument of this matter. Opposing party shall inform the preparing party of objections as to form, if any, or whether the form of order is approved, within five days of receipt of the proposed order. The preparing party shall submit the proposed order and any objections to the court in accordance with California Rules of Court, Rule 5.125.

4. 25FL01636, Hall v. Hall

Motion to Bifurcate and Terminate Marital Status CONTINUED to the law and motion calendar on November 19, 2026, at 9am in Department 21.

#### Facts

Petitioner filed a Petition for Dissolution of Marriage on August 6, 2025. Respondent filed a Response on October 2, 2025. Both parties have filed a Declaration Regarding Service of Declaration of Disclosure.

#### Motion and Discussion

Respondent filed this motion to bifurcate the issue of marital status and terminate marital status. Petitioner agrees to such orders but appropriately notes there are issues that must first be resolved before orders may be entered. Respondent failed to include the mandatory form FL-315 to indicate requested orders, which must list the retirement plans to be joined. Petitioner also raises the issue of health insurance, in that she does not have insurance available to her and is currently provided insurance through Respondent's employer. Last, Petitioner states Respondent did not provide his Schedule of Assets and Debts to her.

#### Conclusion

The matter is CONTINUED to allow for Respondent to provide form FL-315 which shall include the retirement plans to be joined, address the issue of health insurance, and provide Petitioner with his Schedule of Assets and Debts.

#### 5. 25FL01861, Dupre v. Dupre

Motion to be Relieved as Counsel by Attorney Paris GRANTED.

#### 6. 25FL02342, Van Hoy v. Salzmann

Motion to Compel Respondent's Preliminary Declaration of Disclosure and Sanctions pursuant to Family Code section 2107 GRANTED.

#### Facts

Petitioner filed this action for dissolution of marriage without minor children ("Petition") on November 10, 2025. In the Petition, she seeks determinations of separate and community property. She also asks the court to reserve support determinations for the future. Respondent filed his Response on December 8, 2025. The parties have been litigating over property issues.

On June 29, 2026, Petitioner filed her FL-141 Declaration Regarding Service ("Service Declaration") regarding service of her FL-140 Preliminary Declaration of Disclosure ("PDD") and related documents, showing that she had served Respondent with the PDD on November 15, 2025.

According to the declaration of Julie Levy ("Levy"), attached as Attachment 9 to Petitioner's Request for Order ("RFO") and Motion to Compel Respondent's PDD's with all required attachments and sanctions pursuant to Family Code section 2107, Respondent has still not served his PDD, even though Petitioner made a written demand for it and all related documents on March 26, 2026.

#### Motion

In her RFO and Motion to Compel Respondent's PDD's with all required attachments and sanctions pursuant to Family Code section 2107, Petitioner moves the court to compel Respondent to serve his complete PDD with required supporting documents pursuant to Family Code sections 2100-2107.

There is no opposition.

## Applicable Authority

According to the Family Law Rules of the California Rules of Court ("CRC") 5.2(d), and Family Code section 210, provisions applicable to civil actions generally apply to proceedings under the Family Code unless otherwise provided. This includes the rules applicable to civil actions in the California Rules of Court ("CRC") and the Code of Civil Procedure ("CCP"). See, e.g., *In re Marriage of Boblitt* (2014) 223 Cal.App. 4th 1004, at 1022 (discovery).

Unless excused, parties in actions under the Family Code must provide preliminary and final declarations of disclosure meeting the requirements set forth in Family Code sections 2103, 2104, and 2105. If a party fails to provide a disclosure or the required information, the other party may request compliance and, if the party still fails to comply, may then bring a motion to compel. Fam. Code section 2107.

Family Code section 2104 sets forth the requirements for serving a preliminary declaration of disclosure ("PDD"). Subdivision (a) requires each party to serve the other with a preliminary declaration of disclosure, unless excused by court order for good cause, or when service is not required pursuant to Family Code section 2110. Family Code section 2104(b) states that each party must file with the court proof of service of the preliminary declaration of disclosure. Family Code section 2104 requires the service to take place within the time period set forth in subdivision (f). Subdivision (f) requires petitioner to serve the PDD either concurrently with the petition or within 60 days of filing the petition. Respondent must serve the PDD either with the response or within 60 days of filing the response.

The PDD must include all tax returns filed by the declarant within the two years prior to the date that the party served the declaration along with sufficient information to show the identity of all assets in which the party may have an interest, all liabilities for which the party may be liable, and the party's percentage of each asset and percentage of obligation for each liability. Fam. Code section 2104. As set forth on the PDD form FL-140, the PDD must include as attachments: a completed Schedule of Assets and Debts form FL-142 or form FL-160 Property Declaration; completed Income and Expense Declaration ("IED") on form FL-150; the required tax returns for the two prior years; statements of material facts regarding assets and debt obligations; and an accurate and complete written disclosure of investment, business, or other opportunity.

Family Code section 2107 governs the failure to comply with the requirements for preliminary declarations of disclosure set forth in section 2104. It states that where one party has complied and the other has not, the complying party may, within a reasonable time, ask the other to prepare the PDD. It also states that, if the other party still fails to comply, the complying party may file a motion either 1) to compel compliance, or 2) for an order preventing the noncomplying party from presenting evidence on issues that should have been covered in the declaration of disclosure. According to subdivision (c), in addition to other remedies where a party fails to comply with disclosure requirements, the court "shall... impose money sanctions against the noncomplying party. Sanctions shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and shall include reasonable attorney's fees, costs incurred, or both, unless the court finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

## Discussion

Petitioner shows that she has complied with the requirements for serving her PDD and that Respondent has failed to do so. The court record corroborates the information since there is no record of Respondent having filed a form FL-141 or any other document showing that he served a PDD on Petitioner. As Petitioner contends, the deadline for doing so has long since expired. She also shows that she attempted to resolve the matter by informing Respondent that the PDD was overdue, specifically requesting it and the other related documents, and warning that she would bring a motion to compel if he failed to comply.

The court GRANTS the motion.

## Sanctions

Petitioner also seeks monetary sanctions of \$5,000 pursuant to Family Code section 2107. As noted above, section 2107 authorizes the moving party to obtain an award of sanctions and that this award "shall be in an amount sufficient to deter repetition of the conduct or comparable conduct, and shall include reasonable attorney's fees, costs incurred, or both...." The court may deny a request for sanctions if it "finds that the noncomplying party acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

Petitioner appears entitled to an award of sanctions but she fails to provide any explanation or evidence supporting the \$5,000 sought. On the face of the motion, this amount far exceeds the amount of time and attorney's which a simple, routine motion such as this would reasonably require. Although the amount may be larger if truly necessary to "deter" the conduct, Petitioner provides no explanation that a larger amount is necessary for this purpose or that the amount should be this large.

The court finds that on its face, this motion reasonably should involve no more than about 2 hours, at about \$400 an hour, plus the \$60 filing fee. Based on the information before the court, it will award this amount, a total of \$860. Should Petitioner seek a larger amount, she must provide an explanation of the amount sought and evidence supporting it, showing the actual expenses and time, or basis for an amount larger than the actual, reasonable expenses. The court may consider a larger award should it find such an award to be reasonable and justified but the court will not include in the sanctions any additional time spent demonstrating the basis for the sanctions award.

#### Conclusion

The court GRANTS the motion as explained above. The prevailing party shall prepare and serve a proposed order consistent with this tentative ruling within five days of the date set for argument of this matter. Opposing party shall inform the preparing party of objections as to form, if any, or whether the form of order is approved, within five days of receipt of the proposed order. The preparing party shall submit the proposed order and any objections to the court in accordance with California Rules of Court, Rule 5.125.

7. 26FL00679, Fishman v. Fishman

Motion to be Relieved as Counsel by Attorney Paynter GRANTED.

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